

// discovery stage • before anything is shared

Mutual NDA

Mutual Non-Disclosure Agreement

Body Recode the Collective — discovery stage Draft v0.1 — For legal review only. Not for execution.

This NDA is signed **before deep disclosure** (platform demo, doctrine/config walkthrough, detailed pricing, or exchange of the offer documents). It is not required for a first, high-level conversation. It sits *before* the Collective Partner Agreement + IP Licence Deed in the partner journey.

PARTIES

Kade Robert Dunstone, sole trader trading as **Body Recode**, ABN 90 535 525 708, of [Brisbane address — to be confirmed], Queensland, Australia (**Body Recode**)

[ENTITY NOTE: Body Recode currently operates as Kade Dunstone, sole trader t/a Body Recode. If a Pty Ltd is incorporated, substitute the company as a party. See the package cover note.]

[Coach / Prospective Partner name or entity] of [address], Australia (**Coach**)

Each a **Party** and together the **Parties**. Each Party may act as a **Discloser** (when it discloses Confidential Information) and as a **Recipient** (when it receives it).

01 BACKGROUND

A. The Parties wish to explore whether the Coach may join the Body Recode “the Collective” programme, under which the Coach would run a branded coaching business on Body Recode’s platform, powered by Body Recode’s engine and doctrine (the **Purpose**).

B. For that Purpose, each Party may disclose confidential and proprietary information to the other. This agreement records how that information must be protected.

02 AGREED TERMS

03 1. DEFINITIONS

Confidential Information means any information disclosed by or on behalf of a Discloser to a Recipient in connection with the Purpose, whether before or after the date of this agreement, in any form, that is marked confidential or that a reasonable person would understand to be confidential given its nature or the circumstances of disclosure. It includes, without limitation:

- a. **Body Recode's:** interpretation engine, algorithms, machine learning models, prompts and prompt libraries, the Doctrine (rules, safety floors, decision trees, banned-term lists), platform architecture and source code, tenant configuration, roadmap, pricing, commercial model, the Collective offer documents, and know-how; and
- b. **the Coach's:** client information, coaching methodology, business and financial information, marketing plans, and pricing.

Representatives means a Party's employees, contractors, professional advisers, and officers who need to know the Confidential Information for the Purpose.

04 2. CONFIDENTIALITY OBLIGATIONS

2.1 Each Recipient will: (a) keep the Discloser's Confidential Information secret and secure; (b) use it solely for the Purpose, and for no other purpose; (c) not disclose it to any person except its Representatives on a need-to-know basis; (d) ensure its Representatives comply with obligations equivalent to those in this agreement, and remain responsible for their acts and omissions; (e) apply security measures no less rigorous than it applies to its own most sensitive confidential information, and in any event a reasonable standard of care; and (f) not copy, reproduce, reverse engineer, decompile, or attempt to derive the underlying structure, algorithms, prompts, or doctrine of any Confidential Information disclosed to it.

05 3. EXCLUSIONS

3.1 Confidential Information does not include information that the Recipient can show: (a) is or becomes public other than through a breach of this agreement; (b) was lawfully in the Recipient's possession before disclosure, without a duty of confidence; (c) is lawfully received from a third party who is free to disclose it; or (d) is independently developed by the Recipient without use of or reference to the Discloser's Confidential Information.

06 4. PERMITTED / COMPELLED DISCLOSURE

4.1 A Recipient may disclose Confidential Information to the extent required by law, court, or regulator, provided it (where lawful) gives the Discloser prompt written notice and a reasonable opportunity to seek a protective order, and discloses only what is legally required.

07 5. NO LICENCE, NO RIGHTS GRANTED

5.1 All Confidential Information remains the property of the Discloser. Nothing in this agreement transfers or grants any right, title, interest, licence, or option in any Confidential Information or intellectual property, whether by implication or otherwise. In particular, Body Recode's disclosure of any part of its engine, doctrine, or platform grants the Coach **no right to use, reproduce, or build upon it** beyond evaluating the Purpose.

08 6. NO OBLIGATION TO PROCEED

6.1 This agreement does not oblige either Party to enter into any further agreement, partnership, or transaction. Either Party may end discussions at any time. No partnership, joint venture, agency, or fiduciary relationship is created.

09 7. RETURN OR DESTRUCTION

7.1 On the Discloser's written request, or if discussions end, the Recipient will promptly return or destroy the Discloser's Confidential Information (and copies), except (a) one archival copy held solely for compliance, and (b) copies in routine electronic backups that are not readily accessible, each of which remains subject to this agreement for as long as retained.

10 8. TERM AND SURVIVAL

8.1 This agreement applies to Confidential Information disclosed during the period from the date of signing until discussions end.

8.2 The confidentiality obligations continue for **three (3) years** from the date of disclosure, **except** that Confidential Information that is a **trade secret** (including Body Recode's engine algorithms, prompts, and Doctrine) remains protected for as long as it remains a trade secret. *[LEGAL REVIEW: confirm term; some prefer 5 years for this context.]*

11 9. REMEDIES

9.1 Each Party acknowledges that damages may be an inadequate remedy for a breach of this agreement, and that the Discloser is entitled to seek injunctive or other equitable relief in addition to any other remedy, without the need to prove actual damage.

12 10. GENERAL

10.1 **Governing law.** Queensland, Australia. Each Party submits to the exclusive jurisdiction of the Queensland courts.

10.2 **Entire agreement.** This agreement is the entire agreement between the Parties on its subject matter and supersedes all prior understandings on that subject matter. If the Parties later sign a Collective Partner Agreement and IP Licence Deed, the confidentiality provisions of those documents govern information disclosed under them.

10.3 **No assignment.** Neither Party may assign this agreement without the other's prior written consent.

10.4 **No waiver.** No waiver is effective unless in writing. A waiver on one occasion is not a waiver on any other.

10.5 **Severability.** If any provision is unenforceable, it is severed to the extent necessary without affecting the remainder.

10.6 **Counterparts.** This agreement may be signed in counterparts and by electronic signature.

13 EXECUTION

Kade Dunstone t/a Body Recode

Signature: _____ Name: Kade Dunstone Date: _____

[Coach / Prospective Partner]

Signature: _____ Name: _____ Date: _____

[LEGAL REVIEW: adapt the Coach execution block if the Coach signs as a company (add ACN + s127) or as trustee of a trust.]

END OF MUTUAL NDA — v0.1 DRAFT

Companion documents (later stage): `COLLECTIVE_PARTNER_AGREEMENT_v0.1.md` ,
`PARTNER_IP_SUBLICENCE_DEED_v0.1.md`